

Further, Plaintiff provided “invoices” to National reflecting the damages claimed, but these documents were sent after the fact; are not contracts between the parties; and do not adequately explain how the prices were determined.

Furthermore, Plaintiff appears to include improper items in its damage calculation. Plaintiff seeks to recover both the replacement cost of each component, as well as the amount its customers would have paid to Plaintiff for the component. Plaintiff also includes attorneys’ fees in its calculations which are not provided for in the purchase orders.

In all, it does not appear that damages are readily ascertainable.

11. *Avedian v. Citizens Business Bank, et al*, Case No. CIVSB2133301
Defendant’s Motion to Confirm Arbitration Award
6/24/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **GRANT** this unopposed motion.

Case Summary

This is a wage-and-hour class and representative action. Plaintiff originally filed on December 7, 2021, alleging violations related to (1) payment of minimum wages; (2) payment of overtime wages; (3) meal periods; (4) rest breaks; (5) wage statements; (6) paycheck deductions; (7) wage timeliness; (8) final pay; as well as (9) violation of the unfair competition law. The complaint alleged a class of hourly, non-exempt employees working as service representatives, tellers, and related positions. On April 26, 2022, Plaintiff filed a First Amended Complaint (FAC) to add a cause of action for civil penalties pursuant to the Private Attorneys General Act (PAGA).

Relevant here, on October 13, 2022, this Court, under Judge David Cohn, stayed the PAGA claim and ordered the remaining individual causes to arbitration. (Tentative, Oct. 13, 2022.) At arbitration, Defendant brought – and prevailed on – a motion for summary judgment on the underlying individual wage-and-hour claims, as well as the unfair competition law claims that was underpinned by the allege wage-and-hour violations. Thus, the arbitrator held that causes of action 1 through 9 were not established, and she issued a Final Award to that effect. (See Motion, Attachment 8(c).)

Analysis

While Plaintiff has submitted a “response” to the motion, the motion is unopposed. (See Response 2:3 [“Plaintiff will not attempt to oppose . . .”].) A failure to oppose a motion may be

deemed consent to the granting of the motion. (Rules of Court, rule 8.54(c); also *Giles v. Horn* (2002) 100 Cal.App.4th 206,228 [challenge to judicial notice motion forfeited by failure to file opposition].)

12. *Sundel Power, Inc. v. American West College, et al*, Case No. CIVSB2431709
Plaintiff's Motion to Strike Answer
6/24/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **DENY** Plaintiff's motion. However, the Court would **ORDER** Defendants American West and Hong to either (1) deliver the \$1,920 payment at the hearing or (2) hand-deliver the check to Plaintiff's Counsel by no later than June 26, 2026. If Defendants fail to do so, Plaintiff may bring an *ex parte* on or after June 30, 2026, seeking daily imposed sanctions until compliance pursuant to the Court's inherent authority to enforce its orders.

Case Summary

This case relates to a real property sale. Plaintiff alleges that Defendants American West and Hong were the owners and sellers of certain real property in Wrightwood, California. Plaintiff also alleges that, on September 23, 2025, they entered into a written agreement to sell the property to Plaintiff. Other named Defendants have an interest in the property. (Compl., ¶18.) However, despite the contract, Defendant American West refused to sell. As such, Plaintiff filed suit on November 4, 2024, alleging causes for (1) specific performance; (2) quiet title; (3) declaratory relief; (4) breach of contract; (5) fraud; (6) negligent misrepresentation; (7) rescission of contract; and (8) conversion.

Statement of the Law

Code of Civil Procedure section 436(a) states that matters that are irrelevant, false, or improper are subject to a motion to strike. "Irrelevant" means any immaterial allegation, and "immaterial" means (1) an allegation that is not essential to the statement of a claim or defense; (2) an allegation that is neither pertinent to nor supported by a sufficient claim or defense; or (3) a demand for relief not supported by the allegations. (Code Civ. Proc., § 431.10(b)-(c).) Additionally, all or part of a pleading not drawn or filed in conformity with the laws of this state, a court rule, or order of the court may be stricken. (Code Civ. Proc., § 436(b).)

Analysis

As a preliminary matter, Plaintiff has brought its motion per Code of Civil Procedure sections 435 and 436 but fails to comply with the meet-and-confer obligation. No declaration was filed